



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

December 13, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 12463
(ELEVENTH REVISION)

EXPIRATION DATE: 2026-11-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Washington State Department of Transportation
Seattle, WA
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the transportation in commerce of Oxygen, refrigerated liquid, UN1073 in insulated cylinders or insulated cargo tanks aboard a passenger vessel as prescribed herein. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.101 Table, Column (10A) in that Oxygen, refrigerated liquid is authorized on a passenger vessel that exceeds the maximum number of passengers as described in this special permit, 172.301(c), 172.302(c) and 173.302(a) in that a passenger vessel is an authorized mode of transportation for oxygen, refrigerated liquid, as provided herein.
5. BASIS: This special permit is based on the application of the Washington State Department of Transportation dated November 22, 2021, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Oxygen, refrigerated liquid (<i>cryogenic liquid</i>)	2.2	UN1073	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packagings are insulated cylinders meeting the requirements of § 173.316 or § 173.320(a), or insulated cargo tanks meeting the requirements of § 173.320(a). The packagings are prepared for highway motor vehicle transportation.

b. OPERATIONAL CONTROLS:

(1) Each motor vehicle carrying the oxygen, refrigerated liquid, must be loaded and stowed, during a voyage, along the center long axis of the vessel at the bow or stern for optimum ventilation.

(2) The total quantity of oxygen, refrigerated liquid, on each motor vehicle may not exceed 200 gallons.

(3) No more than two motor vehicles carrying oxygen, refrigerated liquid, may be transported per voyage.

(4) The transportation of oxygen, refrigerated liquid is authorized only between the following Washington State Ferry Terminals:

(i) Fauntleroy and Vashon Heights

(ii) Southworth and Vashon Heights

(iii) Point Defiance and Tahlequah

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

b. The requirements of Part 172 apply to each shipment of oxygen, refrigerated liquid.

- c. MARKING: The marking requirements of §§ 172.301(c) and 172.302(c) are waived.
- d. Each vessel crew and vessel operating under the terms of this special permit must be informed about the terms and conditions of this special permit and in the condition as described in paragraph 9 of Washington State Ferries' May 5, 2000 application.
9. MODES OF TRANSPORTATION AUTHORIZED: Passenger ferry vessel.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each passenger ferry vessel used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704. No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: ae